

which it was rendered is pending and an action is deemed pending until it is finally determined on appeal or until the time for appeal has passed. The determination of the issue in the case is held in abeyance until the appeal is finally decided by an appellate court and the appeal operates to “keep alive the case ... as it existed before the judgment was rendered.” ’ ’ (Id. at p. 288.) An appeal is final on the date remittitur issues. (*Hoover v. Galbraith* (1972) 7 Cal.3d 519, 525–526; *Cory v. Poway Unified School Dist.* (1983) 147 Cal. App. 3d 1158, 1165; *Macedo v. Bosio* (2001) 86 Cal.App.4th 1044, 1051, fn. 5.)

Here, Plaintiff Ronny Schaefer filed and served a Notice of Appeal from judgment after the order granting the City’s Motion on October 31, 2025. Plaintiff’s appeal is currently pending with the First Appellate District, Division 1, Case Number A175225. (Rose Decl., ¶ 4, Ex. 3.) As a consequence, issue preclusion is not available because the judgment is not final.

Even if the Court were to conclude that there had been a “final adjudication,” the Court does not conclude that defendant BNSF Railway Company has shown that the issue decided previously is identical with the one sought to be precluded. (See *Ayala v. Dawson* (2017) 13 Cal.App.5th 1319, 1332 [for purposes of issue preclusion a “final judgment” includes any prior adjudication of an issue in another action that is determined to be sufficiently firm to be accorded conclusive effect.].)

A corollary of the rule that collateral estoppel is confined to issues “actually litigated” is the requirement that the issue decided previously be “identical” with the one sought to be precluded. (*United States Golf Assn. v. Arroyo Software Corp.* (1999) 69 Cal.App.4th 607, 616.)

Here, the previous issue litigated was whether the City of Oakley’s public property was in a dangerous condition within the meaning of Government Code section 835. Against BNSF, Plaintiffs have alleged a cause of action for negligence. However, Defendant BNSF’s liability for negligence is not coextensive with the issue of whether the City of Oakley is liable for dangerous condition of public property. Consequently, the issue decided in the City of Oakley’s motion for summary judgment is not identical to the issue for which BNSF seeks preclusion.

The motion for judgment on the pleadings is **DENIED**.

2. 9:00 AM CASE NUMBER: C22-01552
CASE NAME: SCHAEFER VS. BNSF RAILWAY COMPANY
***HEARING ON MOTION IN RE: BIFURCATE LIABILITY FROM DAMAGES.**
FILED BY: BNSF RAILWAY COMPANY
TENTATIVE RULING:

Before the Court is Defendant BNSF Railway Company’s motion to bifurcate liability from damages. The Motion is opposed by Plaintiff Melissa Welsh-Schaefer and Kaylee Mello as well as Plaintiff Ronny Schaefer.

For the following reasons, the motion is **DENIED**.

Legal Standard

Upon a properly noticed motion of a party made no later than the close of pretrial conference, or in other cases, no later than 30 days before the trial date, a court may bifurcate a trial into separate issues when the convenience of witnesses, the ends of justice, or the economy and efficiency of

handling the litigation would be promoted thereby. (Code Civ. Proc. § 598.) Additionally, the trial court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, or of any separate issue of any number of causes of action, preserving the right of trial by jury as required by the Constitution or a statute of this state or of the United States. (Code Civ. Proc. § 1048(b).)

The discretion of the trial court to bifurcate claims and try them separately is broad and will not be disturbed on appeal, except for abuse. (*National Electric Supply Co. v. Mt. Diablo Unified School Dist.* (1960) 187 Cal.App.2d 418; see *Buran Equip. Co. v. H & C Investment Co.* (1983) 142 Cal.App.3d 338, 343-344.)

Analysis

Having reviewed the briefing, the Court is not persuaded that judicial economy would be served by bifurcating liability from damages.

Defendant argues that “[w]ith very limited exception, the damages phase will consist of witnesses who are wholly distinct from those offered on the issue of liability” and that “[o]nly three witnesses can reasonably be expected to offer testimony pertaining to both liability and damages”—specifically Kaylee Mello (the driver), Sarah Salagi (a witness who performed CPR on the decedent), and Logan Cartwright (the officer who responded to the incident. (Motion at 4:20-26.) Defendant also argues that “[d]amages evidence will undoubtedly be prejudicial” because it is probably that “passion and sympathy will impact the jury’s evaluation of liability[.]” (Id. at 5:15-16.)

In opposition, Plaintiffs argue that duplication of evidence is certain if bifurcation were ordered. Specifically, that both Kaylee Mello and Sarah Silagi would have to testify twice in a bifurcated trial. (Schaefer Opp. at § III(A); Welsch-Schaefer and Mello Opp at § III(B)(1).) Plaintiffs also argue that the facts relating to liability and damages are interconnected—for example, plaintiffs’ allegation that the BNSF train was traveling at an excessive speed is relevant to both liability (negligent operation) and damages (severity of injuries and death). (Id. at § III(B)(2).)

On reply, Defendant disputes that the evidence is so interconnected as to preclude bifurcation and that the “[t]he prejudice BNSF seeks to remedy through bifurcation is a cumulative issue.” (Reply to Wells-Schaefer and Mello Opp. at 4:7-8.) The Court notes that to some degree this argument presumes that the prejudice would be ameliorated should BNSF prevail on liability.

Ultimately, the Court finds that Defendants have failed to demonstrate sufficient cause to bifurcate this action. The purpose of bifurcation is to promote efficiency. Here, Defendant has not shown that doing so would convenience the parties or witnesses, avoid prejudice, or promote judicial economy or efficiency.

3. 9:00 AM CASE NUMBER: C22-02694
CASE NAME: JANE DOE VS. GERALD BEARDEN
HEARING ON SUMMARY MOTION BY USA EQUESTRIAN TRUST, INC.
FILED BY:
TENTATIVE RULING:

This hearing was vacated by the Court’s Order entered January 20, 2026.